

GENERAL INFORMATION:

Country name: Republic of Moldova

Organization or entity responsible for the preparation of the report: Ministry of Education and Research

Name of contact person: Elena Turcan, Main advisor, Directorate for Public Policy Coordination and European Integration.

Email and telephone number of contact person: elena.turcan@mec.gov.md

I. Ratification and applicability of the Convention against Discrimination in Education^[1]

- Is your country a State Party to the Convention?

☐ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

- ☐ There is interest but no concrete action has been taken
- ☐ The ratification process has been initiated
- ☐ The ratification process is close to completion

§ Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

Republic of Moldova acceded to the Convention by the Parliament Decision No. 707/1991 and entered into force for Republic of Moldova on 17.06.1993.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes

☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?[2]

☐ No

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.^[3]*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ Yes ☐ No

- If yes, please provide references:

- Education Code, Law 152/2014, article 2 lists the UNESCO Convention against discrimination in education as one of the international treaties that regulates the field of education.
- National Development Strategy European Moldova 2030 (GD 114/2023) set by Objective 3 Ensuring relevant and quality education for all throughout life the following:
 - Holistic development of children in early education for learning and well-being throughout life.
 - Formation of transformative skills and future skills in the educational system.
 - Developing an accessible, flexible and relevant system of continuing education of adults.
 - By 2030, the necessary conditions will be ensured for all children to complete primary education and free, fair and quality secondary education.
 - Gradual increase of funds allocated for research and development by 0.1% of GDP each year.
- National Development Strategy Education 2030 covers General objective Ensuring access to quality lifelong education for all (SDG-4) aiming ensuring access to all levels of the education system and vocational training of vulnerable people

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation^[4], and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b^[5]

- Legal texts[6] prohibit discrimination and guarantee equal access to education:
 - **In pre-primary education (including early learning and care)**
 - **In primary education**
 - **In secondary education**
 - **In technical and vocational education and training**
 - **In higher education**
 - **In adult education and alternative learning**

- Please indicate the relevant legal provisions:

The legal framework to ensure the respect of the rights to education is guaranteed by the Constitution of the Republic of Moldova, Law No. 338/1994 on the rights of the child, Law No. 279/1999 on youth, the Education Code of the Republic of Moldova No. 152/2014. The principles of non-discrimination, universality, and equality of rights are reinforced by the Law on Ensuring Equality No. 121/2012.

Law 121/2012 regarding ensuring equality, article 9 provides prohibition of discrimination in education. Regulation on adult education approved by Government Decision 222/2024 ensures the access to adults' education without discrimination based on age, race, nationality, origin, ethnicity, religion, gender, political view, social origin.

Thus, the Constitution of the Republic of Moldova in Article 35, Right to education, stipulates that:

(1) The right to education is ensured through compulsory general education, through high school and vocational education, through higher education, as well as through other forms of education and training.

(2) The state ensures, in accordance with the law, the right to choose the language of education and training of persons.

(3) The study of the state language is ensured in educational institutions of all levels.

(4) State public education is free of charge.

(5) Educational institutions, including the non-state ones, are established and operate in accordance with the law.

https://www.legis.md/cautare/getResults?doc_id=83916&lang=ro

Constitution of the Republic of Moldova, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=111918&lang=ro

(6) Higher education institutions benefit from the right for autonomy.

(7) High school, vocational and higher education are equally accessible to all, based on personal merit.

(8) The state ensures, in accordance with the law, the freedom of religious education.

State education is secular.

(9) The parents have the priority right to choose the appropriate sphere of education for their children. The Education Code of the Republic of Moldova No. 152/2014 establishes the legal framework for planning, organization, operation and development of the education system in the Republic of Moldova at all levels of education, from early childhood to

higher education. The citizens of the Republic of Moldova have equal rights of access to education and initial and continuing vocational training through the national education system.

The state ensures the inclusion of children and students with special educational needs through individualized approach, determining the form of integrating them in educational institutions. In general education, in the institutions that integrate students with special needs, trained support teachers are working to assist the integration and learning process.

The state guarantees the formation and development of the competence of efficient communication in the Romanian language, in the languages of the national minorities, as the case may be, and in at least two languages of international circulation.

The state promotes lifelong learning, in order to ensure support for citizens in training or development of skills necessary for achieving success from a personal, civic, social and professional perspective

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Education Code of the Republic of Moldova No. 152/2014, Article 7. Education shall be based on the following fundamental principles: a) equity principle – under which the access to learning is carried out without discrimination; b) quality principle – under which the educational activities are related to the reference standards and to the best national and international practices; c) relevance principle – under which the education meets the personal and social-economic development needs; d) learner-centred teaching principle; e) principle of freedom to thinking and independence towards ideologies, religious dogma and political doctrines; f) principle of observing the right to freedom of opinion for pupil/student as direct beneficiaries of the education process; g) social inclusion principle; h) equality assurance principle; i) principle of recognition and guaranty of the rights of persons belonging to the national minorities, including the right to maintaining, development and expression of their ethnical, cultural, linguistic and religious identity; j) principle of unity and integrity of the educational space; k) managerial and financial efficiency principle; l) decentralization and institutional autonomy principle; m) public accountability principle – under which the educational institutions are publicly responsible for their performances; n) transparency principle; o) principle of participation and accountability of community, parents and other social stakeholders; p) principle of support and promotion of the education personnel; q) secular education principle.

- Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education
 - In pre-primary education (including early learning and care)
 - In primary education
 - In secondary education
 - In technical and vocational education and training
 - In higher education
 - In adult education and alternative learning

- Please provide details:

- The Implementation Program for the years 2023-2025 aimed at strengthening inter-ethnic relations in the Republic of Moldova, aligning with the overarching Strategy for the years 2017-2027 ^[1], ^[2].
- The Program to support the Roma population in the Republic of Moldova for the years 2022-2025, which prioritizes access to education for Roma children ^[3].
- The National Program for promoting the learning of the Romanian language by national minorities, encompassing the adult population, spanning from 2023 to 2025^[4].
- The National Program for inclusive education (2024-2027) ^[5], endorsed through Government Decision no. 950/2023

[1] Strategy for strengthening inter-ethnic relations in the Republic of Moldova for the years 2017-2027

https://www.legis.md/cautare/getResults?doc_id=97804&lang=ro

[2] Program for the years 2022-2025 regarding the implementation of the Strategy for strengthening inter-ethnic relations in the Republic of Moldova for the years 2017-2027

https://www.legis.md/cautare/getResults?doc_id=136873&lang=ro

[3] Program to support the Roma population in the Republic of Moldova for the years 2022-2025

https://www.legis.md/cautare/getResults?doc_id=133208&lang=ro

[4] National Program regarding the learning of the Romanian language by national minorities, including the adult population, for the years 2023-2025

https://www.legis.md/cautare/getResults?doc_id=136164&lang=ro

The Program on Romanian language learning by national minorities, including the adult population, for the period 2023-2025 was developed by the Ministry of Education and Research and approved by Government Decision no. 115/2023.

The national program aims to train the Romanian language communication skills of teachers and managers working in educational institutions in the Republic of Moldova, adults working in various branches of the national economy, and other adults who wish to learn Romanian. Acquiring communication skills in the Romanian language will allow the realization of intellectual potential in the area of professional and social interest from an early age and throughout life.

[5] National Program for inclusive education (2024-2027)

https://www.legis.md/cautare/getResults?doc_id=141025&lang=ro

The Program for the Development of Inclusive Education in the Republic of Moldova for the years 2024 - 2027 was developed by the Ministry of Education and Research and approved by Government Decision no. 950/2023.

The new program will ensure the continuity of previous efforts and will complement actions already realized to make more effective the achievement of the assumed objectives. At the same time, inclusive education development allows for a comprehensive approach, multi-spectral, and detailed approach to the challenges and solutions needed by the education system in the context of ensuring inclusion. We also note the pronounced nature of cooperation and partnerships that are specific to the field of inclusive education.

It should be noted that one of the most important actions (2.1.7.) of the Program was achieved by strengthening the capacity of the psycho-pedagogical support structures by creating new sections and services, corresponding to the core tasks, which will ensure an education-inclusive quality education for all children and young people, so that by 2027 all children/pupils, irrespective of the target group, are included in general education institutions and graduates from access to technical and higher vocational education and other forms of lifelong learning, with a guaranteed transition to the labor market.

- Combatting discrimination in terms of curriculum:
 - In pre-primary education (including early learning and care)
 - In primary education
 - In secondary education
 - In technical and vocational education and training
 - In higher education
 - In adult education and alternative learning

- Please provide details:

Reference framework of early education in the Republic of Moldova (2018)

From the perspective of the basic value of the Convention on the Rights of the Child [9] – Human Dignity – early education in the Republic of Moldova promotes the following values:

- The supreme interest of the child;
- The fundamental right to life and growth, learning – guaranteed full development in accordance with native potential; equity and non-discrimination, equal attitude towards all children: equal chances for harmonious development, regardless of gender, ethnicity, religion, level of development, environment of origin, ensured through a balanced and inclusive educational approach;
- Respect for the opinion of the child and the parent;
- Respect for one's own culture, language and beliefs - national and cultural values: love for one's native land, for one's mother tongue, honoring the historical past, the traditions and customs of the people they belong to, as well as the customs of neighboring peoples.

Within the early education system, the child has the following RIGHTS:

- to be educated in a safe environment, where they benefit from physical and emotional protection;
- to have access to all educational materials and resources;
- to participate in the educational process and to be assisted and supported by the educator;
- to be treated with respect and fairness and to be protected from abuse of authority;
- to be protected from the imposition of restrictions that are not absolutely necessary;
- to learn with pleasure and interest and to understand the usefulness of acquired knowledge;
- to benefit from the assistance of social services, when necessary;
- the right to privacy and confidentiality.

According to the Reference Framework of the National Curriculum (2017, https://mecc.gov.md/sites/default/files/cadrul_de_referinta_final_rom_tipar.pdf), some of the principles that formed the basis of the curriculum design for school subjects in the years 2018-2019 were: The principle of individualizing the curriculum (respecting the characteristics of the student's age, interest, motivation), The principle of equality of chances (ensuring equivalent opportunities), the Principle of flexibility (ensuring individual pathways, the possibility of individualizing education), the Principle of social connection, including professional insertion, etc.

At the same time, one of the transversal skills that must be formed in students is related to understanding and promoting the democratic principles of freedom, justice and equality, etc.

Also, in 2022, the Regulation on the selection and purchase of school textbooks was amended (<https://www.legis.md/cautare/getResults?docid=142363&lang=ro>). Thus, one of the criteria for evaluating the quality of the manual is "Non-discriminating character". It stipulates that the draft school textbook respects the principles of equity, diversity, inclusion and non-discrimination regardless of race, color, nationality, ethnic origin, social, national and social status, language, religion or beliefs, sex, gender identity and sexual orientation, age, marital status, disability, health and HIV status, political or any other opinions, wealth, birth, or any other criteria; does not contain information that harms national identity and values, racist, xenophobic elements or promoting national-extremist ideology; the informational content/activities/learning tasks contribute to the formation of opinion, the promotion of human rights and the development of general human values; the information transmitted through text, images, maps, graphs, tables, diagrams, symbols respects the gender balance.

Other adopted measures to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

The curriculum for the optional subjects, likewise, gives the opportunity to prevent and combat discrimination. For example: Education for gender equity and equal opportunities (cl. V-XII); Education for human rights (cl. I-XII); Holocaust: history and life lessons; The art of moral behavior (cl. V-IX). When the discipline is requested by a group of 15 students, the discipline becomes mandatory.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- **Legislation provides for inclusive education for all**
- **Policy measures aim to enhance inclusion in education for all**
- **Teachers are trained on inclusive education [7] and to value diversity**
 - Initiatives to address discrimination and promote cultural diversity and mutual acceptance
- Multiple and flexible learning pathways [8] are provided for
- Curricula and teaching methods are inclusive in design [9]
- Multilingual and intercultural education is supported
- Other:

The Constitution of the Republic of Moldova in Article 35, Right to education, stipulates that:

(1) The right to education is ensured through compulsory general education, through high school and vocational education, through higher education, as well as through other forms of education and training.

(2) The state ensures, in accordance with the law, the right to choose the language of education and training of persons.

(3) The study of the state language is ensured in educational institutions of all levels.

(4) State public education is free of charge.

(5) Educational institutions, including the non-state ones, are established and operate in accordance with the law.

https://www.legis.md/cautare/getResults?doc_id=83916&lang=ro

Constitution of the Republic of Moldova, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=111918&lang=ro

(6) Higher education institutions benefit from the right for autonomy.

(7) High school, vocational and higher education are equally accessible to all, based on personal merit.

(8) The state ensures, in accordance with the law, freedom of religious education. State education is secular.

(9) The parents have the priority right to choose the appropriate sphere of education for their children.

The Education Code of the Republic of Moldova No. 152/2014 establishes the legal framework for planning, organization, operation and development of the education system in the Republic of

Moldova at all levels of education, from early childhood to higher education. The citizens of the Republic of Moldova have equal rights of access to education and initial and continuing vocational training through the national education system.

The state ensures the inclusion of children and students with special educational needs through an individualized approach, determining the form of integrating them in educational institutions. In general education, in the institutions that integrate students with special needs, trained support teachers are working to assist the integration and learning process.

The state guarantees the formation and development of the competence of efficient communication in the Romanian language, in the languages of the national minorities, as the case may be, and in at least two languages of international circulation.

The state promotes lifelong learning, in order to ensure support for citizens in training or development of skills necessary for achieving success from a personal, civic, social and a professional perspective.

Early childhood education institutions in the Republic of Moldova are a multicultural and multilingual space. Children of different nationalities, ethnicities, cultures, spoken languages are also enrolled here. Each child's language and culture is taken into account. All preschoolers, including representatives of national minorities, are offered opportunities to learn in their mother tongue or, depending on the possibilities of the (private) institution and at the request of parents – in an internationally spoken language. By participating in ET, children with a different language and culture (from Romanian) have the opportunity to learn Romanian as a second language, in simple, everyday communication situations, together with other children and with educators. In addition, preschoolers need guidance in language acquisition and use. The way in which the child's language and culture are to be exploited is specified in the individual plan drawn up together with the parents.

In Early Education, the culture, customs and history of the people from which the child comes are studied and appreciated, and these are addressed in daily activities. In cooperation with parents and different communities, children's cultural traditions will be respected and their opportunities to express their culture within ET will be supported. At the same time, ET activities take into account the special needs and priorities of different cultural groups, such as: children of different ethnicities, including Roma, children who use sign language, children from migrant backgrounds.

Another important document is Quality Standards for primary and general secondary education institutions from the perspective of the child-friendly school

https://mecc.gov.md/sites/default/files/document/attachments/o970din_11_10_13_standarde_spc_0.pdf

The Child-Friendly School (CFS) represents a holistic, systemic approach to improving the quality of education that places the child at the center of educational reform.

The quality standards developed for the child-friendly school cover the entire activity system of the institution and pursue the following objectives:

1. respecting the rights of each child;
2. approaching the child as a whole, in a broad context;
3. centering on the child and his family
4. gender sensitivity;
5. promoting the quality of academic results;
6. basing education on real life and the integration of the school into the community;
7. flexibility and the promotion of diversity;
8. ensuring inclusion and ensuring equal opportunities for all children;
9. promoting the child's mental and physical health;
10. the acceptability and accessibility of educational programs for each child;
11. strengthening the competences and status of teachers.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The subsequent normative framework, which guarantees the right to education includes:

- The standard regulation of the early education institution approved by the Ministry of Education Culture and Research (MECR) Order No. 254/2017791; Education Code of the Republic of Moldova No. 152/2014, available in Romanian at: https://www.legis.md/cautare/getResults?doc_id=110112&lang=ro
- Draft Law on dual vocational education and training, available in Romanian at: <https://www.parlament.md/ProcesulLegislativ/Proiectedeactelegislative/tabid/61/Legislativ/d/5916/language/roRO/Default.aspx>
- Standard regulation of the early education institution, available in Romanian at: https://mecc.gov.md/sites/default/files/reg-tip_iet_14.11.2017_rom.pdf
- Quality Standards for primary and general secondary education institutions from the perspective of the child-friendly school, available in Romanian at: https://mecc.gov.md/sites/default/files/document/attachments/o970din_11_10_13_standarde_spc_0.pdf
- The minimum standards for equipping general education institutions with means of information technologies and the Internet, available in Romanian at: https://mecc.gov.md/sites/default/files/ordin_675_din_07.05.2024_standarde_minime_tic.pdf
- The standard regulation for the organization and functioning of primary and secondary education institutions, cycle I and II, approved by the Ministry of Education (ME) Order No. 235/2016;
- The standard regulation for the organization and functioning of the Ethics Council of the general education institution approved by ME Order No. 1095/2016;
- The instruction on the organization of distance education for children with disabilities approved by MECR Order No. 1934/2018;
- Regulation on the evaluation and grading of learning outcomes, promotion and graduation in primary and secondary education approved by MECR Order No. 70/2020;
- Joint Order of the Ministry of Education, Culture and Research (No. 970/2021) and of the Ministry of Justice (No. 90/2021) on the organization of secondary and high school education for detainees in penitentiary institutions;
- The Framework Regulation on the organization of admission in the first cycle - higher bachelor's degree studies for the academic year 2021-2022, approved annually by the Order of the MECR (most recent Order);
- Plans (state order) for admission to higher education with funding from the state budget, approved annually by Government (most recent Decision No. 170/2021);
- Regulation on the organization of undergraduate studies (cycle I) and integrated, approved by the Order of the MECR No. 1625/2019;
- Regulation on the organization and conduct of higher master's degree studies - cycle II, approved by Government Decision No. 80/2022;
- Regulation on the organization of higher doctoral studies, cycle III, approved by Government Decision No. 1007/2014;
- Government Decision No. 1009/2006 On the amounts of scholarships, monthly balances of other forms of social assistance for students in higher education institutions, students in post-secondary and post-secondary non-tertiary Order No. 235/2016, available in Romanian at: https://mecc.gov.md/sites/default/files/regulament_organizare_si_functionare_institutii_invatamint_gene.pdf

Order No. 1095/2016, available in Romanian at:

https://mecc.gov.md/sites/default/files/ordin_regulament_consiliul_etica_institutii.pdf

Order No. 1934/2018, available in Romanian at:

https://mecc.gov.md/sites/default/files/ordinul_nr_1934_din_28.12.2018.pdf

MECR Order No. 70/2020, available in Romanian at:

https://mecc.gov.md/sites/default/files/ordin_modificare_regulament_evaluare.pdf

Joint Order of the Ministry of Education, Culture and Research (No. 970/2021) and of the Ministry of Justice (No. 90/2021), available in Romanian at:

https://mecc.gov.md/sites/default/files/ordin_nr_970_din_2021.pdf

Order No. 641/2021, available in Romanian at:

https://mecc.gov.md/sites/default/files/ordin_641_regulament_admitere_2021.pdf

Government Decision No. 170/2021, available in Romanian at:

https://mecc.gov.md/sites/default/files/hg_107_din_14.07.2021_admiterea_2021.pdf

Order of the MECR No. 1625/2019, available in Romanian at:

https://mecc.gov.md/sites/default/files/ordinul_nr_1625_din_12.12.2019.pdf

Government Decision No. 80/2022, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=130035&lang=ro

Government Decision No. 1007/2014, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=115655&lang=ro

technical vocational education institutions, secondary technical vocational and persons studying in post-graduate education;

- The framework regulation on the organization and development of distance higher education, approved by the Order of the ME No. 474/2016;
- The regulation on granting guarantees and compensations to employees who combine work with studies, approved by Government Decision No. 435/2007;
- The framework regulations for the organization and functioning of technical vocational education institutions, approved by the orders of the ME No. 550/2015, No. 840/2015 and No. 1158/2015;
- Regulation on internships in production in secondary technical vocational education, approved by ME order No. 233/2016;
- Regulation on the organization and conduct of internships in post-secondary and non-tertiary post-secondary technical vocational education, approved by the order of the ME No. 1086/2016;
- Regulation on the organization and conduct of the qualification exam, approved by the order of the Ministry of Education No. 1127/2018;
- Regulation on the organization and conduct of admission to technical vocational training programs, approved by MECR Order No. 459/2020;
- Government Decision No. 1077/2016 on the cost-based financing per student of public institutions of technical vocational education.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

A big challenge is reducing the discrepancies in access to quality education between urban and rural children. In rural areas, there is a shortage of teachers, often some teachers teach 2-3 to 5 school subjects. Children in small schools in rural areas have fewer opportunities to participate in various extracurricular activities.

The educational system in the Republic of Moldova registers a deficit of seven thousand teachers. Annually, out of 1000 graduates of institutions with a pedagogical profile, only one third is employed in educational institutions.

The shortage of teaching staff is also the consequence of the school network we have. In the Republic of Moldova there are 100 schools with less than 50 students and 300 schools with less than 100 students.

In order to reduce the shortage of teaching staff, the Government has undertaken a series of measures (increasing the scholarship for teaching faculties, supporting young specialists by providing financial support, covering travel expenses to/from work, etc.).

At the same time, in order to increase the attractiveness of the teaching profession, the Government aims to offer teachers training courses, reduce school bureaucracy and increase salaries.

Also, the Ministry of Education and Research proposed the modernization of the school network in the Republic of Moldova. In this sense, 35 educational institutions from the district centers were selected, in which massive investments will be made, so that they become poles of attraction for students from nearby localities. According to the minister, over 2 million euros are to be invested in each school from the 35 model institutions. Later, these investments will be extended to other institutions.

Gender equality (including sexual orientation)

- **Legislation provides for gender equality in education**
 - Legislation proscribes discrimination against orientation in education
 - Policy measures aim to enhance gender equality
 - Gender-responsive education sector planning is undertaken
 - Providing positive or affirmative action measures
 - Providing financial incentives and fellowships
 - Teachers are trained (initial and in-service) on gender equality
- **Teachers are trained to combat stigmatisation [10]**
 - All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
 - Re-entry programs for young mothers are provided for
 - Ensuring safe and adequate gender-sensitive sanitation facilities [11]
 - Curricula are rid of all stereotypes [12] and bias
- **Ensuring gender parity in science, technology, engineering and mathematics (STEM)**
- **Ensuring gender parity in technical and vocational training education and training (TVET)**
 - Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In 2022, the Regulation on the selection and purchase of school textbooks was amended (https://www.legis.md/cautare/getResults?doc_id=142363&lang=ro). Thus, one of the criteria for evaluating the quality of the manual is "Non-discriminating character". It stipulates that the draft school textbook respects the principles of equity, diversity, inclusion and non-discrimination regardless of race, colour, nationality, ethnic origin, social, national and social status, language, religion or beliefs, sex, gender identity and sexual orientation, age, marital status, disability, health and HIV status, political or any other opinions, wealth, birth, or any

other criteria; does not contain information that harms national identity and values, racist, xenophobic elements or promoting national-extremist ideology; the informational content/activities/learning tasks contribute to the formation of opinion, the promotion of human rights and the development of general human values; the information transmitted through text, images, maps, graphs, tables, diagrams, symbols respects the gender balance.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

No challenges were encountered in the application of gender equality. Gender equality is respected according to the Education Code no. 152/2014, art. 7

- Does the legal minimum age for marriage conform to international standards (18 years) [13]:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

Law Family Code 1316/2000, article 14 provides 18 years as minimal marriage age. Exceptions are allowed for at most 2 years based on the request and agreement of the minor's parents

Minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities are among the specific groups referred to in the Convention/Recommendation, however, as this term is not defined in the international human rights framework, this section covers all minorities [14].

- **Legislation provides for the right to education of minorities**
- **Policy measures aim to enhance the right to education of minorities**
- **Policy elaboration includes consultations with local communities**
 - The right to carry out their own educational activities is legally guaranteed for minorities
 - Educational standards are established for educational institutions run by minorities
 - Positive or affirmative action measures are provided for minorities
- **Financial incentives and fellowships are provided for minorities**
 - Teachers are trained on intercultural education
 - Teachers are trained to combat stigmatisation[15]
 - Multilingual and intercultural education are supported
 - Native language instruction is ensured for minorities
 - Adapting curricula and teaching and learning methods to their needs for minorities

- Curricula are rid of all stereotypes[16] and bias
- Other:

- The Implementation Program for the years 2023-2025 aimed at strengthening inter-ethnic relations in the Republic of Moldova, aligning with the overarching Strategy for the years 2017-2027
- The Program to support the Roma population in the Republic of Moldova for the years 2022-2025, which prioritizes access to education for Roma children.
- The National Program for promoting the learning of the Romanian language by national minorities, encompassing the adult population, spanning from 2023 to 2025.

All these policy documents target equal access, equity, and quality education for all children and young people, with particular attention to those from vulnerable groups, children with Special Educational Needs, migrants, and Ukrainian refugees.

Districts receive funds for the educational institutions from the state budget earmarked financial resources for: Teaching in national minority languages.

The state guarantees the right of minorities to conduct pre-school, primary, general secondary and secondary vocational, higher university, and postgraduate education in Romanian and Russian, and creates conditions for the realization of the right to receive instruction and education in the mother tongue.

The right of citizens to education and training in their mother tongue is ensured by providing the necessary number of institutions, classes, and groups, and by creating optimal conditions for their functioning.

In the 2021-2022 academic year, there were 261 primary and general secondary educational institutions (21.20%) providing instruction/study of national minority languages and "History, culture, and traditions of the people" as part of the curricula.

Minorities children benefit from the same infrastructure as all children.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

All local public administrations provide free travel for children from localities with high concentrations of Roma to the nearest education institution, if there is no general educational institution of the relevant cycle (primary, lower secondary or upper secondary) within 2 km of their place of residence. The regulations on the organization and conduct of admissions to higher education institutions provide that, for each subject or area of vocational education, a quota of 15 % of the total number of budget-funded places must be set aside for applicants belonging to certain categories, including young Roma.

Besides, the Merit scholarship program for Roma secondary school pupils and university students (adopted by Government Decision No. 818/2023) aims to address educational disparities among Roma children, prevent school dropout and absenteeism, and increase the number of young Roma with better educational and professional training. The program provides for the award of 120 merit scholarships to Roma pupils and students within secondary, technical vocational, and higher education.

To facilitate the implementation of the Program, financial resources amounting to 1.5 million MDL were allocated in the State Budget Law for 2023. The program was launched in autumn 2023, and as of now, 49 Roma students and pupils have benefited from the merit scholarships.

Furthermore, teaching materials and educational aids in the languages of national minorities were developed and distributed to support learning in the mother tongue of students belonging to ethnic minorities and to promote cultural diversity in educational institutions. In total, in 2023, 33,960 textbooks were published for subjects such as "Language and Literature in Russian, Ukrainian, Bulgarian, and Gagauz". These efforts underscore the significant commitment of the Republic of Moldova to support education in the languages of national minorities.

As measures undertaken by the Ministry of Education and Research (MER) to ensure Roma effective equal access to education are the following:

- organizing informational and awareness-raising campaigns for parents on the necessity of children's enrolment in the education system, the importance of compulsory primary and secondary education, and the need to pursue studies;
- organizing special training on intercultural education for teachers and managers to create an inclusive and effective educational system based on the principles of equity, non-discrimination, and respect for diversity;
- provision of free travel for children from localities mainly inhabited by Roma to the nearest educational institution, if it is located not less than 3 kilometers away;
- providing textbooks;
- providing meals for Roma children;
- cooperating with Roma NGOs and voluntary organisations in discussion on issues relating to the inclusion of children in the educational process;
- developing the mechanisms for identifying Roma children who do not attend a school or have a high level of absenteeism, the MER actively cooperates with the local public authorities and non-governmental organizations promoting Roma inclusion;
- ensuring access to professional technical and higher education through reserving places with funding from the state budget for several categories of candidates, including Roma children;
- organizing informational sessions for Roma children, Roma community mediators, and Roma leaders about the opportunities for Dual Education in the Republic of Moldova;
- elaboration and implementation of the school curriculum "History, culture, and traditions of the Roma in the Republic of Moldova" for the primary classes (in three languages: Russian, Romanian, and Romanians);
- organizing and conducting training on cultural differences in the preschool and school education process in partnership with Roma organisations.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- Legislation provides for the right to education of indigenous people
- Policy measures aim to enhance the right to education of indigenous people

- Policy elaboration includes consultations with local communities
- The right to carry out their own educational activities is legally guaranteed for indigenous people
- Educational standards are established for educational institutions run by indigenous people
- Positive or affirmative action measures are provided for indigenous people
- Financial incentives and fellowships are provided for indigenous people
- Teachers are trained on intercultural education
- Teachers are trained to combat stigmatization [17]
- Multilingual and intercultural education are supported
- Native language instruction is ensured
- Adapting curricula and teaching and learning methods to their needs for indigenous people
- Curricula are rid of all stereotypes [18] and bias
- Other:

According to the Moldovan legal framework, there is no provision for the term “indigenous people”. Hence, policy measures do not refer to this category of population.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[19]:

- **Legislation provides for their right to education**
 - Policy measures aim to enhance their right to education
 - **Inclusion in mainstream schools is ensured**
 - Positive or affirmative action measures are provided for
 - All administrative barriers to access education are removed
 - Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers^[20] are provided for
 - Teachers are specifically trained to ensure their inclusion
 - Teachers are trained to combat stigmatisation [21]
 - Financial incentives and fellowships are provided for
 - Auxiliary assistance is provided
 - Multiple and flexible learning pathways [22] are provided
 - Curricula are rid of all stereotypes [23] and bias
 - Accelerated learning programs are provided
 - Non-formal and/or alternative education programs are provided

- Language classes to newcomers are provided for
- Multilingualism and intercultural education are encouraged
- Other:

The Law No. 200/2010 on the Status of aliens provides a complete and uniform regulatory framework for the regime of foreigners in the territory of our country, according to which a uniform procedure for their documentation is applied. The law concerned provides for the procedures applicable to minor children: the non-admission of exit and the transfer under supervision of the minor (art.12), the granting and extending of the temporary residence right for family reunification with foreigners residing in the Republic of Moldova (art.38) granting and terminating of the right of permanent residence (art.45), taking in public custody of minors and their families(art.641), the legal regime applicable to minors residing in the territory of the Republic of Moldova without their legal representatives (art.85), the access of foreigners minors to education (art. 86), etc. Art. 86 of the Law No. 200/2010 on the regime of foreigners provides the access of foreigners' minors to education. Based on the Law No.270/2008, the minor asylum seeker or beneficiary of international / temporary / political asylum, accompanied or not, is protected and receives the appropriate assistance in order to benefit from all the rights recognized by the UN Convention on the Rights of the Child and the other international human rights instruments to which the Republic of Moldova is a party. Unaccompanied minors benefit from the measures of protection of children at risk and of children without parents in accordance with the provisions of Law No. 140/2013 on the protection of children at risk and of children separated from their parents.

The enrolment of foreigners in the higher educational institutions is carried out in accordance with the provisions of the Regulation on the studies of foreigners in educational institutions of the Republic of Moldova, approved by Government Decision No. 504/2017. Foreigners are enrolled in educational institutions of the Republic of Moldova in accordance with the national legislation in force, international treaties, international/regional projects/programmes to which the Republic of Moldova is party, agreements concluded between educational institutions, accredited in the established manner, as well as individual contracts concluded between foreigners and educational institutions. The training of foreigners is carried out, as a rule, in Romanian or Russian, or in an international language, depending on the possibilities of the educational institutions and within the limits of the allocated budgetary means.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

A minor who applies for asylum or beneficiary of international protection, of temporary protection or political asylum, accompanied or unaccompanied, is protected and receives appropriate assistance in order to enjoy all the rights recognized by the UN Convention on the Rights of the Child and the other international instruments on human rights to which the RM is party. The territorial guardianship authority for the whereabouts of the unaccompanied minor seeking asylum or for the beneficiary of international protection, of temporary protection or political asylum is the legal representative of the minor concerned and acts on his behalf in relation to natural and legal persons, including authorities of public administration, criminal prosecution bodies and courts. In all actions and decisions concerning minors, the interests of the minor shall prevail. Unaccompanied minors are subject to the child protection measure separated from their parents, which provides conditions for their upbringing and care in social placement services, in accordance with the Law No. 140/2013 on the special protection of children in risky situations and children separated from their parents.

Foreigners whose residence is in the interest of the Republic of Moldova may be granted the right of permanent residence without fulfilling the above conditions. If both parents are holders of the right of

permanent residence, the minor foreigner obtains the establishment of residence in the Republic of Moldova together with his/her parents. The minor is also entitled to establish residence in the Republic of

Moldova if only one of the parents is entitled to permanent residence and if he/she is dependent on that parent.

Since 2021 the Law has introduced special provisions regarding integration of minors in order to underline certain activities. Thus, foreign minors have access to medical care, access to compulsory education under the same conditions as minor citizens of the RM. Minors who do not have all the necessary documents at the time of enrollment in the educational institution shall be registered with the obligation to present them by the parents or legal representative within a reasonable time, but not later than 2 months from the date of registration. This provision is not mandatory for beneficiaries of international protection, based on the specific nature of the category. Minors who have obtained international protection shall, if necessary, benefit during a school year, from a free introductory course in the state language in order to integrate into the education system, organized by the local public administration authorities.

During the introductory course, minors participate free of charge in theoretical, practical and recreational training activities within the school units. The MIA considered it important to introduce in the legislation provisions referring to the integration of families composed of foreigners and citizens of the RM. Thus the central and local public authorities shall implement the integrated approach in the field of diaspora, migration and development in order to implement measures for the protection of families composed of foreigners and citizens of the RM.

Law No. 274/2011 on integration of foreigners in the RM, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=124776&lang=ro#

In case of beneficiaries of international protection, they can request integration activities or to be part of an integration program. Beneficiaries of international protection are included in the integration programs on the basis of individual applications and in accordance with an integration commitment concluded between the applicant and the Bureau of Migration and Asylum. The beneficiary can apply for an integration program within 60 days of the date of obtaining international protection. After registering the application, the person applying for admission to the integration program is interviewed, and an individual needs assessment note is drawn up to determine the type of assistance or activities necessary for its social integration. The individual needs are brought to the attention of the relevant authorities together with which, within 30 days, the individual integration plan is elaborated which includes the objectives set for the beneficiary, deadlines, activities necessary to achieve objectives, institutions and /or responsible organizations, which is brought to the attention of the beneficiary and whose implementation is monitored by the Bureau.

During the integration program the beneficiary can stay in the Accommodation center (up to 1 year), can request financial assistance (up to 6 months), can receive free of charge health insurance (up to 1 year), with the condition to have an active participation in integration measures. The integration program and the integration measures shall be established and implemented based on the needs of the beneficiaries, without discrimination and respecting their cultural specificity. It is important to mention that central government authorities involved in the integration process meet quarterly to assess the integration process of foreigners, to identify shortcomings in the implementation of integration measures, to plan joint activities and to systematize information on the field of integration, in order to submit proposals for adjustment of national policies. Additionally, the process of consultation with civil society is set every six months.

in the case of a minor asylum-seeker, to have access to general compulsory education under the same conditions as children that are citizens of the RM.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Between February 24, 2022 and August 2022, over 2,450 children from refugee families from Ukraine were integrated into general education in the Republic of Moldova. Of these, 683 children attended early education institutions (within 250 institutions), 1429 were enrolled in primary schools, middle schools and high schools in the country (within more than 250 institutions), and 340 children attended various extracurricular educational institutions in the country (within 50 institutions).

Between September 2022 and May 2023, over 1,400 children in grades 1-12 (within 230 institutions) were enrolled in general education in Moldova, over 960 children in early education institutions (within 230 institutions), about 320 children attended various extracurricular educational institutions in the country (within 42 institutions).

In the years 2023-2024, until 30.05.2024, 1781 children in grades 1-12 (in 230 institutions) were enrolled in general education in Moldova, 1176 children in early education institutions (in 210 of institutions), 320 children attended various extracurricular educational institutions in the country (within 39 institutions).

In order to ensure access to education for school-aged children, who decided to study individually through online lessons organized by educational institutions in Ukraine, with the support of UNICEF and development partners, 69 spaces equipped with ICT and high-speed Internet access. Thus, in 2023-2024, 132 students from Ukraine completed their studies online using digital laboratories in institutions in the Republic of Moldova.

In order to ensure the right of refugee children to education, to facilitate access to education and to permanently monitor the placement process in the educational institutions of the republic, the Ministry of Education and Research undertook several actions: it developed normative acts in this regard, ensured staff training from institutions (teachers, school psychologists), provided psychological counseling for parents and children, etc.

On the official website of the MEC, the information directory "In support of children and youth from Ukraine" was created, intended for the educational inclusion of refugee children from the neighboring country <https://mec.gov.md/ro/content/v-podderzhku-detey-i-molodezhi-ukrainy>.

In accordance with the Instruction on the integration of children from refugee families from Ukraine in general education institutions, approved by MEC order no. 1109/2023 (https://mec.gov.md/sites/default/files/ordin_mec_1109_din_04.09.2023_instruatiune_refugiati.pdf), general education institutions are responsible for ensuring the conditions for studies, including online, information about the possibilities and opportunities offered for psychological assistance and/or educational counseling, creating recreational conditions, monitoring the well-being and safety of children/students from refugee families, as well as facilitating access to the free Romanian language courses organized by the Ministry of Education and Research etc.

People with disabilities:

- **Legislation provides for their right to education**
- Policy measures aim to enhance their right to education
- **Inclusion in mainstream schools is ensured**
- Special schools are used as resource centers to include schools
- Positive or affirmative action measures are provided
- Financial incentives and fellowships are provided
- Mainstream teachers are specifically trained on disabilities
- Teachers are trained to combat stigmatization [24]
- Auxiliary assistance is provided
- Curricula and teaching and learning methods are adapted
- Curricula are rid of all stereotypes [25] and bias
- Education infrastructure and learning materials are adapted
- Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The domestic law prohibits discrimination against persons with physical, sensory, intellectual, and mental disabilities in employment, education, access to public facilities, health services, or the provision of other government services. Moldovan Parliament ratified the Convention on the Rights of Persons with Disabilities (CRPD) in 2010.

In accordance with art. 32 and 33 of the Education Code of the Republic of Moldova No. 152/2014, education for children with special educational needs is an integral part of the education system.

A minimum package of inclusive education services has been developed to accommodate all pupils in mainstream educational settings: municipal/district psycho-pedagogical support service and support services at the institution level (support teacher and resource center for inclusive education). In order to create conditions and educational support services, financial resources are allocated annually from the district education component up to 2%.

In order to ensure didactic-methodical support with reference to the inclusion of children and young people with disabilities, provisions have been developed for the realization of the individualized educational plan; methodological guide on curricular adaptations, and evaluation of school progress in the context of inclusive education; final evaluation and certification of students with special educational needs included in compulsory education.

Comprehensive assessment of the development of children with disabilities is carried out in the presence of parents or legal representatives by the district/municipal psycho-pedagogical assistance services, whose work is monitored and assisted by the Republican Centre for Psycho-pedagogical Assistance. The existing 35 district/municipal psycho-pedagogical assistance services develop recommendations on the educational inclusion of children, provide psycho-pedagogical assistance services to children and provide methodological assistance to specialists in education and related fields in achieving educational inclusion.

Specialized assistance to children with disabilities in general education institutions is carried out by organizing multidisciplinary in-school committees, setting up teams to draw up and implement individualized educational plans, employing support teachers, and setting up and equipping resource centers for inclusive education at the level of educational institutions.

Out of 24 higher education institutions (2022), only 14 are equipped with ramps for disabled people, although all dormitories have been adapted either by installing ramps or by providing the first floor to disabled students.

In the teaching/learning process, disabled students are allowed to have individual study plans, which will accommodate courses to their needs. Also, in case of an inability to access the university facilities, the students can be allowed to be assessed remotely.

In terms of teacher training programmes, a compulsory course on Inclusive education was introduced, credited with 2 ECTS, in order to equip future teachers with the necessary skills and abilities to work in a multispectral environment.

There was also training on this subject for teachers from all 24 higher education institutions.

In the adult education segment, all public or private institutions/ organizations that have continuing vocational training programs provide training courses in physical and online format, thus ensuring access to continuing education for all adults, including people with special needs.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- Financial incentives and fellowships for school enrolment are provided
- **Transport, meals and education materials are subsidized or provided free of charge beyond compulsory education**
- Positive or affirmative action measures are provided
- Teachers are trained to combat stigmatization [26]
- Curricula are rid of all stereotypes [27] and bias
- Other:

- Government Decision no. 198/1993 regarding the protection of socially vulnerable children and families https://www.legis.md/cautare/getResults?doc_id=87107&lang=ro provides that:
- the local self-administration bodies, ministries and state departments, which have secondary schools and high schools under their authority, are granted the right to fully or partially exempt the students of the above-mentioned institutions, from families with many children and socially vulnerable, from paying for food, the expenses to be borne from the account of own budgetary and extra-budgetary means (pt. 6)
- District executive committees and village town halls· to ensure, free of charge, from the budget, the supply of special food products for children up to one year old and children up to 2 years old· from families with many children and socially vulnerable families, domiciled in rural localities (pt.8)
- The Ministry of Trade and Material Resources, the Republican Union of Consumer Associations of Moldova, the State Association of Fuel Production and local self-administration bodies to contribute to improving the provision of family-type children's homes with food, machinery, inventory items, construction materials and fuel in accordance with the rules provided for the maintenance of orphaned children and children without parental guardianship, distributed in boarding-type institutions (pt. 12)

At the same time, Government Decision no. 234/2005 regarding the feeding of students https://www.legis.md/cautare/getResults?doc_id=97277&lang=ro recommends that local public authorities extend the practice of financial insurance of free feeding to students of grades V-XII who come from socially disadvantaged families vulnerable, students with special educational needs and

students transported to/from educational institutions in rural localities, over distances exceeding 2 km.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation [28] and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education [29]. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|--|---|
| ○ Prior to pre-primary education, ECCE services are free | ○ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ○ Prior to pre-primary education, ECCE services are affordable | |
| ○ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

Law No. 370/2023 on the Rights of the Child aims to ensure that every child enjoys their fundamental rights and freedoms, is protected from harm, and has access to the necessary conditions for their physical, mental, emotional, and social development.
Early childhood education is organized according to state educational standards.

The main goal of early education is the multilateral development of the child and preparation for integration in school.

Early education takes place in various types of institutions: nurseries, kindergartens and community centres and may be organized in residential institutions for children who are orphaned or left without parental care or in special educational institutions for children with chronic diseases.

Early education includes two cycles:

- pre-school education - pre-school groups, for children aged 0 to 2 years, which take place in the family or, on request, can be organized in appropriate institutions;
- pre-school education - pre-school groups for children from 2 to 6 (7) years of age, including preparatory groups, in which, on request, all children are enrolled on a compulsory basis according to the corresponding school district.

- Is compulsory and free of charge pre-primary education available?

- Pre-primary education **is** compulsory. Please provide the age of enrolment and duration:

According to the Education Code no. 152/2014, art. 13, only the preparatory group for school (children aged 6-7) is part of compulsory education

- Pre-primary education is **not** compulsory.
- Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

According to the Education Code, art.25, the State bears the expenses for educational and care services in public institutions for all children aged between 2 and 6 (7), including those with special educational requirements. Parents pay only 1/3 of the cost of feeding the child in IET.

At the request of families, educational and care services for children under the age of 2 can be organized by local public authorities from their own resources.

- Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- Limited access
- Issues of equity and inclusion
- Poor quality programs
- Poor learning outcomes
- Low number of professionally trained educators
- Lack of support to families
- Other

- limited access to early education for children from 266 localities without educational institutions; 4049 children aged 0-6(7) live in these localities, including 1410 children aged up to 3 years and 2639 children aged over 3 years. Children from these localities attend early education institutions from neighboring localities (as a rule, from the same commune) or open groups in the premises of gymnasiums in their native localities (without the status of an educational complex). Thus, 2,321 children from localities without kindergartens are involved in early education services, the total rate constituting 57.3% - 342 children under the age of 3, the enrollment rate constituting 24.3%) and 1,979 children over the age of 3, with a rate of 74.2%. The distance, which the children travel to the institutions neighboring their hometown, extends from 0.5 km to 24 km. Thus, we have:
 - 87 localities at a distance of 1-2 km from the kindergarten attended by the children;
 - 71 localities at a distance of 3-4 km;
 - 49 localities at a distance of 5-6 km;
 - 27 localities at a distance of 7-9 km;
 - 17 localities at a distance of more than 10 km.

The transportation of children is ensured by the local public authorities of the first level to 105 kindergartens - as a rule, by contracting school buses, which transport students to the constituency schools. To 143 kindergartens, transport is provided by the parents, and to 8 kindergartens – by Local Education Authority (school buses).

- a) limited access to educational and care services in institutions in the urban environment: the occupancy rate of places in educational institutions is 102 children in Chisinau.
- b) didactic insurance below the level of minimum endowment standards;
- c) shortage of qualified staff: only 64.7% of the teaching staff have ISCED level 6;
- d) lack of family involvement in children's education

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

From 7 years to 11 years. Duration 4 years

- Is primary education compulsory and free of charge?

- **Primary education is compulsory**
- Primary education is **not** compulsory.
- **Primary education is free of charge.**
- Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

No fees

- What challenges were encountered in realizing primary education?

- | | |
|---|--|
| <ul style="list-style-type: none">○ Limited access○ Issues of equity and inclusion○ High dropout rates○ Poor quality programs○ Poor learning outcomes in:<ul style="list-style-type: none">▪ Foundation literacy▪ Numeracy | <ul style="list-style-type: none">▪ Social and emotional learning▪ Others○ Disparity in learning outcomes○ Low number of professionally trained teachers○ Other: |
|---|--|

No obstacles were encountered for enrollment in primary classes. Education is compulsory according to the Education Code no. 152/2014, art. 13

- Please elaborate. Brief quantitative information may be added.

The methodology regarding the criterion evaluation through descriptors in primary education, grades I-IV, approved by the Order of the Ministry of Education, Culture and Research no. 1468 of 13.11.2019 (https://mecc.gov.md/sites/default/files/mecd_1-4_15.11.20191_site.pdf)

The National Bureau of Statistics informs at the beginning of 2023/24 study year.

- were active 87 primary schools,
- the number of pupils in primary education - 11222 students

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Entry age 11 years, according to the Education Code, art. 12 and 20, Duration-5 years

- Please provide the age of enrolment and duration of upper secondary education:

Entry age 16 years, according to the Education Code, art.12 and 31. Duration-3 years

- Is lower and upper secondary education compulsory and free of charge?

- **Lower secondary education is compulsory.**
 - Lower secondary education is **not** compulsory.
- **Lower secondary education is free of charge.**
 - Lower secondary education is **not** free of charge.
- Upper secondary education is compulsory.
- **Upper secondary education is not compulsory.**
- **Upper secondary education is free of charge**
 - Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Model regulation on the organization and functioning of primary and secondary general education institutions, cycle I and II, approved by the Ministry of Education Order no. 235\2016.

The methodology for admitting students to high school education, approved by MEC order no. 190\2024

The instruction for organizing the invitation to the home, approved by MEC order no. 368\2015

Order no. 635 of 03.05.2021, regarding the approval of the Instruction regarding the process of selection and organization of optional subjects in general education

Order no. 970 of 21.07.2021, regarding the organization of secondary and high school education for prisoners in penitentiary institutions

Government Decision No. 876 dated 22-12-2015 regarding insurance with manuals of students

The National Bureau of Statistics informs at the beginning of 2023/24 study year.

- were active 1 761 gymnasiums, 344 lyceums, 7 schools for children with mental or physical handicaps and 2 evening schools.
- the number of pupils in general secondary education amounted to 334.4 thousand persons, of which 322233 students;
- the number graduates of gymnasiums were 30,0 thousand persons, and graduates of lyceums was 12,0 thousand persons, of which 10,7 thousand persons received a bachelor's degree.
- the number of management and pedagogical staff amounted to 26,0 thousand persons.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

The Republic of Moldova made some advancements in combating child labour and eliminating the worst forms of child labour. In January 2021, Parliament adopted Law No. 191, which reversed changes that had delegated responsibility for occupational safety and health inspections to 10 smaller agencies and returned it to the State Labour Inspectorate. The government also enacted legislation aimed at preventing the exploitation of children separated from their parents, usually due to labour migration.

However, despite new initiatives to address child labour, the Republic of Moldova has challenges in addressing the elimination of the worst forms of child labour. About 24% of children are engaged in child labour according to UNESCO Institute for Statistics, most of them (97.3%) working in agriculture. Only 2.2% of children work in the services sector and 0.6% work in the industrial sector.

https://www.legis.md/cautare/getResults?doc_id=103149&lang=ro

Government Decision No. 760/2014, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=110307&lang=ro

Government Decision No. 51/2018, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=109605&lang=ro

Government Decision No. 889/2013, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=103106&lang=ro

Government Decision No. 730/2018, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=128886&lang=ro#

The Republic of Moldova has ratified the following international conventions related to child labour:

- ILO Convention No. 138 concerning the Minimum Age for Admission to Employment;
- ILO Convention No. 182 concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labor;

- Palermo Protocol on Trafficking in Persons. The Republic of Moldova has established laws and regulations related to child labor:
- Labor Code 882(Law No. 154/2003) states that the minimum age to work is 16 (art. 46). Employment for workers of 15 years of age is possible with the written consent of parents or legal representatives. The minimum age for hazardous work is 18 (art. 255). The application of a trial period for workers up to 18 years of age is prohibited (art. 62).

The Labor Code also states that workers up to 18 years of age are prohibited to work during the night shifts, working overtime, working on continuous shifts, and working during the rest days (art. 103, 105, 110, 257). Minors are also entitled to annual rest leaves during the summertime or on the basis of a written request during any time of the year (art. 116).

The reduced duration of working time per week represents 24 hours for workers from 15 to 16 years of age and 35 hours for workers from 16 to 18 years of age.

The daily duration of the working time cannot exceed 5 hours. For workers between 16 to 18 years old, the daily duration of the working time cannot exceed 7 hours (art. 100).

The Labour Code provides additional guarantees for the dismissal of workers up to 18 years of age. Dismissal of workers up to 18 years of age, except in case of entity liquidation, is allowed only with the written consent of the territorial employment agency, respecting the general conditions of dismissal stipulated in the Labour Code (art. 257).

- The nomenclature of works with heavy, harmful, and/or dangerous working conditions in which persons up to 18 years of age are prohibited to work and the maximum allowed norms for persons up to 18 years of age when manually lifting and transporting weights (Government Decision No. 541/2014883). This normative act determines the industries with heavy, harmful and/or dangerous work to which the application of the work of persons up to 18 years of age is prohibited.

The government has established institutional mechanisms for the enforcement of laws and regulations on child labour:

- The State Labor Inspectorate enforces child labour laws through inspections of labor relations of enterprises, institutions, and organizations, regardless of their type or legal form.
- Committee for Combating Trafficking in Persons within the Ministry of Internal Affairs leads criminal investigations and arrests perpetrators,

Law No. 154/2003, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=130513&lang=ro#

Government Decision No. 541/2014, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=22016&lang=ro

Trafficking of children for both labor and sexual exploitation, cooperates with the Border Police Inspectorate, National Anti-Corruption Center, and Customs Service, and provides partial funding for the operation of a 24/7 trafficking in person hotline.

- Specialized Prosecution Office for Organized Crime and Special Cases and Anti-Trafficking Bureau within the Prosecutor General's Office (PGO) monitors and analyzes human trafficking cases in the Anti-Trafficking Bureau within PGO. It also includes a unit to investigate and prosecute cases.

Even though the lack of unannounced inspections in sectors in which child labour is known to occur exists, labour law enforcement agencies in Moldova took important actions to combat child labour. In 2019 authorities in Moldova found 109 violations, conducted 34 investigations, initiated 30 prosecutions, and imposed 16 convictions and 7 penalties for violations related to the worst forms of child labour. In 2020, authorities identified 23 child victims of trafficking, 20 of whom were trafficked for sexual exploitation, 2 for labour exploitation, and 1 for forced begging. Separately, nine minors ages 16 to 17 were used by criminal groups to traffic drugs. The government funds and participates in programs that include the goal of eliminating or preventing child labour. One of them is the Decent Work Country Program that is renewed every four year. The current program for 2021-2024 and the previous program for 2016-2020 mandates that the programs must gather statistics on the prevalence of child labour, build the

capacity of the labour inspectorate, and combat labour exploitation in construction and agriculture sectors. In 2020, the government approved legislative changes proposed as a part of this program that returned OSH inspections to the State Labour Inspectorate.

- What challenges were encountered in realizing secondary education?

- Limited access
- Issues of equity and inclusion
- High dropout rates
- Poor quality programs
- **Poor learning outcomes**
- Low readiness of primary graduates
- Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

The Republic of Moldova has participated in four cycles of the Programme for International Student Assessment (PISA): PISA 2009+, PISA 2015, PISA 2018, and PISA 2022, and is slated to participate in PISA 2025. Here are the key findings from PISA 2022 and trend results:

- (i) Mean scores for students from the Republic of Moldova and the OECD declined in PISA 2022.
- (ii) Girls in the Republic of Moldova continue to outperform boys in Reading and Science.
- (iii) Advantaged students in the Republic of Moldova achieved significantly higher results than disadvantaged students, with a gap of more than 80 points.
- (iv) Approximately half of the students in the Republic of Moldova do not attain the baseline level of proficiency according to PISA standards.
- (v) Students from educational institutions with a small number of students scored significantly lower on average compared to students from institutions with a large number of students.
- (vi) In large educational institutions, about 3 out of 10 students fail to reach the minimum proficiency level, whereas in small institutions, this number increases to 7 out of 10 students.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3^[30], and target 4.4^[31]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- Higher education is free of charge
- **Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)**

- **Higher education is accessible through financial incentives and scholarships**
 - Higher education is accessible through positive or affirmative action measures
- **Higher education is accessible through credit transfer system between states**
- **Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).**
- Other:

In the Republic of Moldova, university studies are carried out on the basis of the Nomenclature for professional training fields and specialties of higher education, developed according to the recommendations of the International

https://mecc.gov.md/sites/default/files/ordinul_459_cu_anexe_0.pdf

https://statistica.gov.md/public/files/publicatii_electronice/Educatia/Educatia_editia_2021.pdf

Government Decision No. 482/2017 on approval of Nomenclature for professional training fields and specialties of higher education, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=121862&lang=ro

Standard Classification of Education (ISCED-F 2013), which includes 70 training fields and 173 specialties at the first cycle, bachelor's level.

According to the Education Code of the Republic of Moldova No. 152/2014, admission to each cycle of higher education is organized by competition, based on the methodology of the higher education institution, within the limit of the enrolment capacity established by accreditation or provisional authorization of operation. The criteria for the organisation of the admission competition are

determined by the Framework Regulation on the organisation of admission to the first cycle - bachelor's degree, approved by the Order of the Minister of Education and Research.

Citizens, regardless of gender, ethnic origin, mother tongue, religion or disability, are guaranteed access to higher education: to slots financed from the state budget, within the limits set annually by the Government; and to places with tuition fees, paid by individuals or legal entities.

Over the past few years, the Ministry of Education and Research has taken concrete steps to ensure access to higher education for orphans, children with disabilities, children of Roma origin, etc.

In the admissions sessions, special provisions in the regulations for the organisation and conduct of admissions include young people from Roma families in the category of candidates who enjoy facilities. Thus, the Regulations on the organization and conduct of admission to higher education institutions in the Republic of Moldova, sets a quota of 15 percent of the total number of places (in each specialty / field of vocational training and form of education, according to the admission quota), provided for in the plan of budget-funded enrolment for a number of categories, including young Roma, with priority given to young people from vulnerable families, including:

- orphans and those left without parental care.
- with a severe or marked degree of disability, enabling them to pursue studies and practice their chosen profession.
- with both parents with a degree of disability, etc.

Enrolment for this quota is at the request of the candidates. Candidates in the above categories may take part in the general admission competition at the same time.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

The Government funds annually around 8700 study grants for Bachelor and Master studies (in Higher Education)

- 15% of the Government grants are distributed to socially vulnerable groups: people with disabilities, Roma, without parental protection, with multiple children

- 70% of state funded students receive a monthly stipend, based on performance
- students from vulnerable groups receive a 'social stipend', regardless of performance
- Roma students (in HE and VET) receive a 'merit stipend' based on academic performance

- What challenges were encountered in realizing higher education?

- o Limited access
- o Issues of equity and inclusion
- o Poor quality programs
- o Poor learning outcomes
- o Low number of professionally trained professors
- o Insufficient mechanisms to ensure smooth transition from secondary to tertiary

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to "ensure inclusive and equitable quality education and promote lifelong learning opportunities for all", target 4.6 specifically calls on states to "ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy". Furthermore, under target 4.4, states are called "to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life."

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- o Provision of education for persons who have not received or completed the whole period of their primary education
- o Provision of literacy programmes
- o Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- o Provision of free of charge learning opportunities
- o Provision of professional training including reskilling and upskilling programmes
- o Recognition, validation and certification of non-formal and informal learning
- o Provision of free of charge career guidance and counselling
- o Lifelong learning entitlements include learning accounts, vouchers, etc.
- o Other:

In accordance with the provisions of the Education Code (Title VII, Chapter I, Art. 123,124), lifelong learning is carried out in contexts of formal, non-formal and informal education.

1. The lifelong learning in the formal education context may be carried out in the following institutions or organizations:
 - General education, technical vocational and higher education institutions;

- Public and private institutions or organizations providing professional training and education, provisionally authorized or accredited;
 - Enterprises or organizations providing provisionally authorized or accredited training programs to their own employees.
2. The lifelong learning in the non-formal education context is carried out in the following institutions or organizations:
- Institutions and organizations provided in paragraph (1);
 - Extra-school institutions;
 - Centers for children's care and protection;
 - Enterprises;
 - Cultural institutions;
 - Professional, cultural, and trade-union associations;
 - Non-governmental organizations;
 - Other organizations.
3. The lifelong learning in the informal education context is carried out through activities organized in the family, at the workplace, in the community, within social networks, volunteering activities, sport, cultural or other activities of the same kind, which leads to building of competences and skills.

The certification of knowledge and skills acquired in non-formal and informal education contexts is realized by competent structures in this respect, based on a regulation approved by the Ministry of Education and Research.

The continuous professional training of adults, in the context of lifelong learning, depending on the complexity, is achieved through:

- Thematic courses and training/specialization programs – up to 90 hours;
- Short-term courses and programs of improvement/specialization – from 90 hours to 300 hours;
- Courses and programs of multidisciplinary training/specialization – from 300 hours to 600 hours;
- Additional qualification courses and programs for ISCED levels 3, 4, 5, corresponding to the same general field of study or training – from 540 hours to 900 hours;
- Additional qualification courses and programs for ISCED level 6, corresponding to the same general field of study or training – from 900 hours to 1800 hours;
- Training courses and programs for ISCED levels 3, 4, 5, corresponding to another general field of study or training – from 900 hours to 1800 hours;
- Training courses and professional retraining programs for ISCED level 6 corresponding to another general field of study or training – from 1800 hours to 2700 hours.

In lifelong learning, 840 adults continuing education programs are provisionally authorized/accredited and provided by 13 higher education institutions, 4 technical vocational education institutions, 4 continuing education institutions and NGOs, 78 economic agents with the right to provide continuing vocational training services for adults.

All institutions which provide continuing vocational training services are required to follow the provisional authorization/accreditation procedure in order to provide continuing vocational training courses for adults. The decision on the authorization of provisional operation, accreditation, non-accreditation or withdrawal of the right to organise a continuing professional training program shall be adopted by the Ministry of Education and Research based on the results of the evaluation carried out by the National Agency for Quality Assurance in Education and Research. Therefore, public control is carried out through institutionalized mechanisms by the Ministry of Education and Research, the National Agency for Quality Assurance in Education and Research (NAQAER).

- Please elaborate further on the measures taken:

To ensure the employment of adults, the Ministry of Education and Research (MER) with the National Employment Agency contributed to the professional training of adults by delegating about 6,570 citizens to various adult training courses, financed from the state budget, as follows: 2017 – 1,911 citizens, 2018 – 2,214 citizens, 2019 - 868 citizens, 2020 - 691 citizens, 2021 - 886 citizens

- What challenges were encountered in realizing adult learning and education?

- Limited access
- Issues of equity and inclusion
- Poor quality programs
- Other
- **Limited funding**
 - Poor learning outcomes
 - Low number of professionally trained education

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- **State monitoring and inspections**
- **Health and sanitation**
- **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**
- **Infrastructure**
- **Curriculum**
- **Student-teacher ratio**
- **School fees (if relevant)**
- Other

Legislative framework governing Quality Assurance:

- Code of Education, approved in 2014
- European Standards and Guidelines for Quality Assurance in the European Higher Education Area implemented in national legislation in 2015
- Methodology on evaluation of vocational, higher education and continuing education study programmes and institutions, 2016

The management of quality in vocational, higher education and CPD is ensured:

- a) at the national level – by the Ministry of Education and the National Agency for Quality Assurance in Education and Research;
- b) at the institutional level – by internal structures for quality assurance.

A fully operational quality assurance system shall imply two successive stages:

- a) the provisional operation authorization, which is the act for establishing the institution and grants the right to carry out the educational process and to organize the admission to education;
- b) the accreditation, which besides the rights set forth in item a) of this paragraph, shall grant the right to organize the graduation exam, as well as the right to issue diplomas, certificates, and other study documents, recognized by the Ministry of Education

Professional competence standards of general education teachers (2018)

https://mecc.gov.md/sites/default/files/standarde_de_competente_profesionale_ale_cadrelor_didactice_din_invatamantul_general_2018.pdf

Standards of professional skills of general education managers (2018)

https://mecc.gov.md/sites/default/files/standarde_de_competente_profesionale_ale_cadrelor_de_conducere_din_invatamantul_general_2018.pdf

Quality standards for primary and general secondary education institutions from the perspective of child-friendly schools (2013)

https://mec.gov.md/sites/default/files/o970din_11_10_13_standarde_spc_0.pdf

The minimum equipment standards for school cabinets in general secondary education institutions (2020)

https://mec.gov.md/sites/default/files/standarde_dotarecabinetescolaremodiford.419_2020.pdf

Evaluation methodology of general education institutions

https://mecc.gov.md/sites/default/files/anexa_1_ord_581_metodologie_evaluare_institutii_invatamantul.pdf

Methodology for the evaluation of general education management staff

https://mecc.gov.md/sites/default/files/anexa_2_ord_581_metodologia_cadr_conducere.pdf

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

Moldova participated in four PISA cycles: PISA 2009+, PISA 2015, PISA 2018, PISA 2022 and now participates in PISA 2025;
In each PISA cycle, mean scores of Moldova were below the OECD average;
Compared to the first participation of Moldova in the PISA, the gap between the OECD mean and the mean score of the Moldova has diminished by more than 20 points.
In 2024, for the first time, was organized computer-based test in primary school in mathematics on a representative sample;
The paper version of the test has been transposed into digital format, ensuring that the skills assessed are retained;
The measures are taking to extend the national primary school test in digital format to other subjects and to a larger sample of pupils.

- What challenges were encountered in realizing quality education?

- Non-supportive or inadequate learning environments
- **Violence in schools**
- Cost of education
- **Conflicts or crises**
- Other:
- Low quality educational infrastructure and materials
- Inadequate parental support to education
- Long distances to schools

- Please elaborate. Brief quantitative information may be added.

Modernising education and training systems, enhancing quality, relevance and access is ensured by:

- The national baccalaureate exam is an external one, organised in Baccalaureate Centres;
- In each examination room of each Baccalaureate Centre video monitoring is provided;
- Each written test is scanned before it is marked by assessors; Each candidate can see online verified test
- Ensuring quality in education by promoting high-performing students:
21 national school Olympiads and competitions
19 regional and international school Olympiads

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- **Teacher training is provided without discrimination.**
 - Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- **Initial training and continuous professional development are provided.**
- **Minimum standards and qualifications required for the teaching profession.**
- **Measures taken to strengthen the social status and attractiveness of the teaching profession.**
 - Measures taken to promote diversity in the teaching workforce, including redressing gender imbalances at different levels of education.
 - Establishment of performance monitoring systems.
 - Measures taken to increase women in leadership positions in education.
 - Other:

Article 132 of the Education Code on the minimum qualification requirements for teaching and scientific-didactic positions

- a) in the early education – holding training qualification in the area of at least ISCED level 4 – non-tertiary post-secondary technical and vocational education and training;
- b) in the primary education – holding a training qualification of at least ISCED level 5 – bachelor's degree
- c) in gymnasium education - holding a training qualification of at least ISCED level 6 – bachelor's degree
- d) in the lyceum education – holding a training qualification of at least ISCED level 7 – master's degree
- e)

The initial training of teachers, psychologists and psycho-pedagogues in General education is carried out in higher education institutions and in professional technical institutions.

In the first 5 years of teaching activity, teaching staff from public general education institutions benefited from support for professional insertion, including the reduction to 75% of the teaching norm for a position salary, as well as assistance from the mentor teaching staff.

STRATEGIC OBJECTIVE no. 3 (EDUCATION 2030 STRATEGY) The quality of the teaching staff - the quality of education - the quality of human resources - the quality of the economy focused on:

- Modernization of the system and the process of continuous professional training of teaching/managerial staff at all levels, so that the percentage of quality human resource in the system increases by at least 5% annually.
- Continuing professional training programmes are carried out according to the following classification:
 - a) upskilling /specialization programs - 150-900 hours (5-30 ECTS);
 - b) professional reskilling programs, corresponding to the same field of professional training - 1800 - 3600 hours (60-120 ECTS).(1 credit=30 hours)

Credits obtained in the accredited professional training programmes are recognized and potentially transferable to other institutions and programs.

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- **Shortages of teaching staff**
 - Lack of qualified, trained and motivated teaching staff
 - Lack of training centers
- Other
 - Low quality educational infrastructure and materials
 - High student – teacher ratio

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.^[32] Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- **Curriculum includes human rights education.**
- **Educational and/or extracurricular activities are organized on human rights education.**
- Other:

- I. Development partnerships in order to diversify educational offers in formal and non-formal education.

II. Additional training for teachers.

- Please elaborate on each of the measures taken:

- I. Curriculum reform in general education to reconceptualize the compulsory school subject Education for society based on the Reference Framework of Competences for Democratic Culture (CoE)
Gradual development of the curriculum package (evaluation, guides, methodological materials)
CDC in educational policies, integrated transversally into other subjects
- II. Monitoring methodology of the implementation of the school curricula
Partnerships for the professional training of teachers in the application of CDC Inclusive and participatory school policies
Communication and reflections platforms for teachers
Partnerships that encourage the application of CDC.
Reconceptualization of the compulsory school subject Education for Society (EPS) based on the Reference Framework of Competences for Democratic Culture (RFCDC) for CoE (2018);

Development of the curriculum package and gradual implementation of the EPS discipline (with CoE assistance)

The curriculum for the EPS discipline (2018)

https://mecc.gov.md/sites/default/files/eps_gimnaziu_2018-08-14_curriculum_ghid.pdf

https://mecc.gov.md/sites/default/files/eps_liceu_2018-08-14_curriculum_ghid.pdf

Evaluation methodology through descriptors for the EPS discipline (2018, 2020, 2023)

https://mecc.gov.md/sites/default/files/metodologie_evaluare_descriptori_eps.pdf

The methodology for monitoring the implementation of the curriculum at EPS (2023)

https://mecc.gov.md/sites/default/files/metodologie_monitorizare_eps_1511-2023.pdf

The teacher's guide to EPS (8 guides for grades V-XII) (2018-2023;

https://mecc.gov.md/sites/default/files/coe_educatie_pentru_societate_clasa_5_ro.pdf

https://mecc.gov.md/sites/default/files/coe_educatie_pentru_societate_clasa_9_ro.pdf

Support activities for initial and continuing training institutions for teaching staff in the development of EPS disciplinary curricula

Retraining program for teachers

Master's program "EPS Didactics" within UPS "I. Creanga".

Elaborated recommendations on intercultural education in the context of EPS for vocational training institutions.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision [33].

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

- Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation ^[34] explicitly apply to non-state educational institutions. Please specify:

According to the Education Code of the Republic of Moldova, art. 21, (4) and (5): Private educational institutions of all levels may be established, reorganized and liquidated in the manner provided by civil

legislation and this code. Accredited private educational institutions are part of the national education system and carry out their activities in accordance with the provisions of this code.

State educational standards are mandatory for all public and private educational institutions.

https://www.legis.md/cautare/getResults?doc_id=143290&lang=ro#

- Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

The Education Code, Article 38. Educational alternatives stipulates:

- (1) The state guarantees the right to differentiated education based on educational pluralism by admitting educational alternatives in the national education system.
- (2) Educational alternatives, public and private, are established with the approval of the Ministry of Education and Research, according to the legislation in force.
- (3) The way of organization, operation, evaluation and accreditation of educational alternatives is established by the Ministry of Education and Research.
- (4) Educational alternatives benefit from organizational autonomy and function in accordance with state educational standards and the specifics of the alternative. No school districts are established for educational alternatives.

- Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

- Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)
 - **Registration**
 - **State monitoring and inspections**
 - **Qualifications of teachers**
 - **Health and sanitation**
 - **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**
 - **Infrastructure**
 - **Curriculum**
 - Student-teacher ratio
 - School fees
 - **School closures**
 - Other

Art. 3 of the Educational Code stipulates: state educational standards - the mandatory conditions for the realization of educational programs at all levels and educational cycles in public and private institutions, as well as the mandatory minimum requirements for the content of educational programs, the maximum amount of work required of the child, pupil or student and teaching staff, to the infrastructure and endowment of the educational institution, to the level of preparation of the

graduates and the organization of the educational process. State educational standards constitute the basis for the objective evaluation of the quality and level of training and qualification of graduates, regardless of the form of studies;

- national reference standards - set of requirements that define an optimal level of performance of the activities of the education provider/education provider institution based on existing good practices at national, European or international level. The national reference standards are specific to each study program and each institution.

- What challenges were encountered in non-state education provision?

- o Low quality educational infrastructure and materials
- o Low number of professionally trained teachers
- o High student – teacher ratio
- o Other:
- o Issues in terms of equity and inclusion
- o Weak government regulatory and monitoring capacity

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion [35].

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- o Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Digital competence standards for teaching staff

https://mecc.gov.md/sites/default/files/ordin_competente_digcompedu_compressed_1.pdf

Minimum standards for equipping general education institutions with means of information technologies and the Internet

https://mecc.gov.md/sites/default/files/ordin_675_din_07.05.2024_standarde_minime_tic.pdf

Standards of digital skills of primary, secondary and high school students

https://mecc.gov.md/sites/default/files/cnc4_final_competente_digitale_elevi_22iulie2015_1.pdf

- Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure

the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

- **Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.**
- **Measures to remove barriers to accessing digital content[36], including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.**
- **Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.**
- **Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education**
- Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

Digital skills are fostered through initiatives like the introduction of Computer Science as a subject, the inclusion of Digital Education and Robotics modules within the Technology Education curriculum, and the availability of optional ICT subjects covering areas such as Artificial Intelligence, Mobile Application Programming, Graphic Design, Web Design and Development, Algorithm Programming in C/C++, Introduction to IT Security, Entrepreneurship, Video Storytelling, Emotional Intelligence in communication, Drone Programming and Piloting, 3D Modelling and Printing, and Fun Java Programming. These offerings equip students with the ability to effectively use digital technology, safeguard themselves against online threats, and develop proficiency in programming and app development. In August 2023, the Standards for digital competencies of teaching staff were approved, providing a framework for educators to enhance their digital skills. The DigCompEdu framework (MEC Order no. 1110 of 04.09.2023) ensures alignment of teachers' digital competencies with European standards, guiding assessment and development programs.

Inclusion of a dedicated course in information communication technologies (ICT) to develop digital literacy and skills is one of the objectives for higher education is to modernize the curriculum to improve employability.

Law No. 133/2011 on the protection of personal data
https://www.legis.md/cautare/getResults?doc_id=143076&lang=ro#

Regulation for ensuring the security of personal data processed by the Ministry of Education and Research in the process of using the General Education Institutions Mapping System
https://mecc.gov.md/sites/default/files/ordin_referitor_la_politica_de_securitate.pdf

Completed via https://mecc.gov.md/sites/default/files/ordin_261_din_28_aprilie_2015.pdf

Online library of educational resources <https://educatieonline.md/>

Interactive resource platform <https://educatieinteractiva.md/>

Video lessons for preparation for secondary school and high school graduation exams
<https://mecc.gov.md/ro/content/examenele-nationale-2020>

The digital skills training curriculum for teachers based on the DigCompEdu Standards is being developed
https://particip.gov.md/ro/document/stages/*/12575

- What challenges were encountered in digital education provision (check all that apply)?

- Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways
- Lack of equity and inclusion in digital learning solutions
- inadequate safety measures and IT
- support to respond to issues of child online safety or reduce cyber security risks
- Other:
- Limited access to internet and/or electricity
- Limited access to hardware (devices, chargers, etc.)
- Difficulty in regulating the use of digital education solutions
- Difficulty in sustainably financing digital education solutions at national scale
- **Lack of digital skills development for meaningful use of digital technology in teaching practice**
- Disjointed or fragmented solutions that are not centrally systematized or regulated

In 2021, early education institutions had 5700 computers, out of which 3812 (66.9%) computers were used for educational purposes, compared to 3250 computers in 2020. 82% of the total number of computers had Internet connection, up 6.5% from 2020.

Primary and general secondary schools have 37000 computers used for educational purposes (about 23% more than in 2020/21), of which 18100 (48.9%) are connected to the common school network and 31400 (84.9%) have Internet connection. 20100 computers are used by pupils, 15900 by teaching staff, and one thousand computers are used in libraries. Compared to the academic year 2020/21, both the number of computers used by students and by teaching staff) increased by 17.5% and 31.4% respectively.

- Please elaborate. Brief quantitative information may be added.

Primary and general secondary education institutions have 47.9 thousand computers used for educational purposes (18.3% more than the 2022/23 academic year), of which 22.2 thousand (46.3%) are connected to the common school network, and 43.0 thousand (89.9%) have an Internet connection. At the same time, 26.8 thousand computers are used by students, 19.6 thousand by teaching staff and 1.5 thousand computers used in libraries. Compared to the 2022/23 academic year, both the number of computers used by students (by 20.7%) and by teaching staff (by 14.0%) increased.

4. Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability

mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available” (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- Monitoring results are made public. [Please provide the link:](#)

According to the Framework Regulation on the Functioning of the Board of Governors of the Educational Institution, 23 the Board of Governors acts as the governing body of the educational institution with a decision-making role in administrative matters.

According to its area of competence, the Board of Directors participates in the governance process of the educational institution in the following ways: participates in the competition committee for the appointment and evaluation of the director and deputy directors of the educational institution; determines the development directions of the educational institution, approves the school component of the framework plan for the educational institution; engages with the community by collecting feedback on the institution's services and development priorities. In the area of financial administration: organises public hearings concerning the execution of the budget for the previous year and the approval of the budget for the budget year following the school year in which the draft is presented, as well as in other cases, participates in the drafting of the budget, ensuring the transparency of the process by organizing public hearings, and approves the budget of the educational institution and its amendments, manages financial resources from sources other than the budget, ensuring transparency and fairness in their use.

Monitoring the implementation of the Methodology of financing on the basis of standard cost per pupil is carried out at the central level by the Ministry of Education and Research jointly with the Ministry of Finance, and at the local level - by the education directorates jointly with the finance directorates.

The higher education management is performed at two levels: at the national level by the Ministry of Education and Research, and at the institutional level – by the management and administrative entities of the higher education institution.

The system of management bodies in the higher education institutions encompasses the Senate, the Strategic and Institutional Development Council, Scientific Council, Faculty Council, Administration Council and Rector of the institution.

The higher education institution is administered by the rector, assisted by prorectors, with the support of the Administration Board.

The rector is the budget executor of the higher education institution.

Order of the Ministry of Education, Culture and Research No. 269/2020 on the approval of the Framework Regulation on the functioning of the board of directors of the general education institution, available in Romanian at:

https://www.legis.md/cautare/getResults?doc_id=120901&lang=ro

The rector is elected by the General Assembly of teaching and research staff and by student representatives in the Senate and the faculty councils, voted by the majority of members.

According to the provisions of the Education Code, the state guarantees the financing of higher education institutions for the entire duration of the studies in accordance with the admission plan (state order), approved annually by the Government.

The primary source of financing of the public education system is the state budget allocations for higher education institutions subordinated to the Ministry of Education and Research, as well as other allocations from the state and administrative-territorial units for education.

The budgetary financing of higher education is done through standard financing: standard cost per student and adjustment coefficient, which is implemented on the basis of performance indicators in research, knowledge transfer, teaching and learning. In accordance with the provisions of the Methodology for budgetary funding of higher education institutions, approved by Government Decision 343/2020, the financial resources provided for the State Order are distributed in accordance with the three types of funding provided for in Art. 145 of the Education Code No. 152/2014; standard funding, compensatory funding, complementary funding. Higher education institutions may accumulate and use, according to the law, their own revenues deriving from the fees paid by interested individuals and legal entities, including those from abroad, for training, professional development on contract basis.

Developing democratic school governance and participation in decision-making
Elaboration of the Methodological Guide for democratic school governance in the Republic of Moldova

<https://rm.coe.int/ghid-metodologic-ro/1680a5b008>

https://mecc.gov.md/sites/default/files/20240118-045_compressed.pdf

Elaboration of the Compendium of good practices regarding the implementation of the Democratic School Governance Guide <https://rm.coe.int/compendium-dgs-ro/1680aaaafe>.

Assistance and mentoring programs for 40 educational institutions (selected on a competitive basis from 143 applicants) in the implementation of the Guide (2024-2025)

Development of professional training workshops for managerial staff regarding the Reference Framework of Competences for Democratic Culture (RFCDC) for Council of Europe (CoE)

https://mecc.gov.md/sites/default/files/ordin_mec_1511_monitorizare_eps_1.pdf

Development of non-formal activities in order to implement the RFCDC for CoE;

Children's Human Rights Defenders Forum

https://mecc.gov.md/sites/default/files/ordin_forum_2022.pdf

Collaboration of schools with Youth Centers in training RFCDC for CoE

https://mecc.gov.md/sites/default/files/educatie_pentru_societate_repere_metodologice_2022-2023_ro_1.pdf

- Monitoring processes are participatory, inclusive and regular.
- Sector-wide and multisector approach is adopted to education governance.
- **Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.**
- **The decision-making process for the allocation of resources to education is transparent.**
- Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- **There is a certain degree of decentralization in favor of local public authorities and autonomy for schools to ensure context relevance of their teaching.**

- Please elaborate on each of the measures taken:

Order No. 269/2020 of 09.03.2020 regarding the approval of the framework Regulation regarding the operation of the board of directors of the general education institution

Primary and secondary education institutions (cycle I and II) under the second-level local public authorities are financed on the basis of standard cost per student
https://www.legis.md/cautare/getResults?doc_id=141223&lang=ro#

At the same time, through transfers with a special purpose, from the state budget, additional financial resources are allocated for the feeding of children and the study of the mother tongue by minorities.

The framework plan for primary, secondary and high school education, approved by the Ministry of Education and Research, allows educational institutions to decide on the educational program applied at the institution level.

https://mecc.gov.md/sites/default/files/ordinul_mec_cu_privire_la_planul_cadru_pentru_2024-2025ro.pdf

Also, educational institutions, in order to achieve the flexible component (optional subjects) of the Education Framework Plan, can decide on the optional subjects studied in the institution and the extracurricular activities.

- What challenges were encountered in terms of governance?

- **Budgetary constraints**
- **Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels**
 - Poor dialogue with teachers' trade unions
 - Other:
- Absence of supportive/inconsistent/obsolete legal and policy environment
- **Lack or weakness of monitoring systems – including the lack of reliable data**

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- Translation of the Convention/Recommendation into the national and possibly local languages

- Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- Other:

[1] <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

[2] Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

[3] Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

[4] See: Article/Paragraph 1(1).

[5] Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

[6] Constitution, laws, decrees, regulations, circulars, etc.

[7] Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper: Inclusive teaching: preparing all teachers to teach all students](#), 2020, p.14.

[8] Multiple and flexible learning pathways are ‘entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education’ ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

[9] In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

[10] Stigmatization is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

[11] Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal’ ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

[12] Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

[13] Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

[14] Minorities include national or ethnic, religious and linguistic minorities. Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

[15] Supra note 15.

[16] Supra note 16.

[17] Supra note 15.

[18] Supra note 16.

[19] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

[20] While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

[21] Supra note 15.

[22] Supra note 13

[23] Supra note 16.

[24] Supra note 15.

[25] Supra note 16.

[26] Supra note 15.

[27] Supra note 16.

[28] Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

[29] Which commits states to "Enhance policy and legal frameworks to ensure that the right to education includes ECCE"

[30] Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

[31] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

[32] Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

[33] Private, faith-based, NGOs, community actors.

[34] See: Article/Paragraph 1(1).

[35] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children’s right to education in relation to the digital environment.

[36] Lack of internet connection, basic infrastructure or devices.